253

DAILY REPORT

I. Evidence

The plant leader of the Rosenberg plant at Maxhuette took the stand and testified generally along the same line as Vogel had the previous day. Defense Counsel Pelckmann followed the same practice with this witness, Walter Laermann, as he had with both the defendant Terberger and Vogel, in that he had all of them testify with respect to each of the documents bearing their respective names or initials. In each instance the witnesses were asked to explain the surrounding circumstances under which the document was written and to explain the reasons for the document's existence. Laermann of course testified that conditions were completely proper at Rosenberg and that the management did everything within its power to improve living and working conditions. Laermann testified that the percentage of foreign workers at Rosenberg was extremely low, namely, about 9%, and that as a consequence, the plant was continually in trouble with governmental agencies to increase the number of foreign workers employed there. Laermann further testified that the sickness rate appearing in documents did not truly reflect the actual state of affairs because foreign workers out of a lack of desire to perform work continually visited the doctor for every minor ailment. In his opinion, food was always sufficient and of satisfactory quality. He could only recall one case involving the escape "of a foreign worker". Under cross examination he could remember that he had written a memorandum to the workers' kitchen in which he requested a greater varity in the food being given to Russian prisoners of war since the sickness rate of such prisoners had risen considerably under a continual diet of boiled turnips. Laermann furthermore was forced to concede that foreign workers who had been brought back to Rosenberg after the plant had reported to the police that they had escaped may not have been working at the plant volunterily after their return.

A Vorstand member of Maxhuette, Fritz Wesemann was then called to the stand by Dr. Pelckmann who testified about the coercesive measures taken by the government to force Maxhuette to take production orders. The witness even on direct examination was unable to recall any instance in which a threat was made against Maxhuette for objecting to take orders for producing steel. He testified generally about the threats made against the iron producing industry. On cross examination Wesemann had to admit that he could not recall that "express" threats were made but that there were "very stringent instructions" given to the industry by the "leading men of the main ring for iron production and the RVE" which corresponded to the general instructions of the political leaders. He admitted that the persons who composed the RVs and who made up the membership of the main ring iron producing industry were representatives of industrial firms, and, furthermore, those were the organizations in which production problems and production schedules were worked out and formulated.

II. Law and Procedure

None

III. Developments outside Court

A conference between the Tribunal and representatives of the Prosecution and Defense resulted in an agreement that closing arguments would begin on Monday, Nov. 24, and that the Prosecution would first be heard followed by the